

Sh. Ritesh vs Ms. Monika Sarkar on 18 April, 2017

IN THE COURT OF JAGDISH KUMAR
ASJ-02 (WEST): DELHI

CA No. : 54518/16

In the matter of:

Sh. Ritesh
S/o Sh. Subhash Shah
R/o 137, Gopinath Bagh
Gopeshwar Road, P. S. Vrindavan
District Mathura
Uttar Pradesh

Versus

1. Ms. Monika Sarkar
W/o Prasanjeet Sarkar
Alleged to be W/o Ritesh (Appellant)
D/o Sh. Vikas Kumar Sarkar
R/o H. No. P-205
Raghubir Nagar
New Delhi - 110027
2. Sh. Subhash Shah
R/o 137, Gopinath Bagh
Gopeshwar Road
P. S. Vrindavan
District Mathura
3. Smt. Reeta Shah
W/o Sh. Subhash Shah
R/o 137, Gopinath Bagh
Gopeshwar Road
P. S. Vrindavan
District Mathura

CA No. : 54518/16

4. Ms. Monika Shah
D/o Sh. Subhash Shah
R/o 137, Gopinath Bagh
Gopeshwar Road
P. S. Vrindavan
District Mathura

Respondents

Date of institution of the Appeal :	16.08.2016
Date of arguments :	30.03.2017
Date of decision :	18.04.2017

JUDGMENT :

-

1. This judgment shall dispose of the appeal as filed by the appellant U/s 29 of Protection of Women from Domestic Violence Act, 2005 (hereinafter called the Act) against the order dated 28.06.2016, vide which interim maintenance of Rs. 5000/- PM has been granted to the respondent no. 1, (hereinafter called the impugned order) passed by the Ld. Trial Court.

2. Brief facts of the case are that the respondent no. 1, who has married to the appellant on 07.03.2013 at Delhi, had filed petition U/s 12 r/w Sec 18/19/20/22 & 23 of the Act seeking certain reliefs including the protection order, residence order, monetary relief and compensation order.

3. The respondent no. 1 has asserted in the petition that after marriage she had come to her matrimonial home where appellant and she resided as husband and wife. The marriage was consummated but no issue was born from the said wedlock. The respondent no. 1 has also asserted in the petition that a considerable amount was spent on her marriage by her parents.

4. The respondent no. 1 further asserted in the petition that the appellant and his father, mother and sister started harassing her only just after 15-20 days of her marriage. It is further asserted that the appellant and her husband, father, mother and sister started demanding dowry. The respondent no. 1 further asserted that on 30.05.2013, she was thrown out of her matrimonial home after beating her. Hence, she has filed the petition under the Act.

5. Here, in the present appeal the appellant has assailed the order of Ld. Trial Court on the grounds that Ld. Trial Court has not considered the fact of marriage between the appellant and respondent no. 1 being null and void ab-initio as the respondent no. 1 was already married with one person namely Sh. Prasanjeet Sarkar. It is also alleged that the first marriage between the respondent no. 1 and said Prasanjeet Sarkar was concealed by the respondent no. 1. It is further alleged that the respondent no. 1 cannot claim any maintenance from the appellant during the subsisting of her previous marriage.

6. It is further alleged that the respondent no. 1 and her family members have taken inconsistent plea before the courts at Mathura as well as Hon'ble High Court of Allahabad in the FIR no. 765/13, at the time of seeking bail, as an FIR has been lodged against the respondent no. 1 and her family members on the allegations of fraud being committed by the respondent no. 1 and her family members with the appellant and his family members.

7. On the other hand, it is argued by the Ld. Counsel for respondent no. 1 that the respondent no. 1 is an aggrieved person and a victim of domestic violence being committed by the appellant and his family members. It is further argued that the respondent no. 1 and appellant resided in domestic

relationship as husband and wife. It is argued that Ld. Trial Court has rightly passed the order which not require any interference.

8. I have heard Ld. Counsel for appellant and Ld. Counsel for the respondent no. 1 and given my thoughtful consideration to the submission made by them. I have also carefully gone through the material available on record. The respondent no. 2 to 4 are proforma respondents.

9. Before proceeding further it will be appropriate to notice, at this stage, the definitions of the expressions 'aggrieved person' and 'domestic relationship' as appearing in Section 2

(a) and (f) of the Act

10. (a) "aggrieved person" means any women who is, or has been, in a domestic relationship with the respondent and who alleges to have been subjected to any act of domestic violence by the respondent.

(b)

(c)

(d)

(e)

(f) "domestic relationship" means a relationship between two persons who live or have, at any point of time, lived together in a shared household, when they are related by consanguinity, marriage , or through a relationship in the nature of marriage, adoption or are family members living together as a joint family."

11. It is also pertinent to mention here the legal preposition as settled by the Hon'ble Superior Courts. The Hon'ble Supreme Court of India has dealt the issue similar as involved in the present case. The Hon'ble Supreme court has observed in case titled as Deoki Panjhiyara Vs. Shashi Bhushan Narayan Azad & Anr. as "12. Having considered the submissions advanced by the learned counsels for the contesting parties, we are of the view that the questions raised, namely, whether the appellant and the respondent have/had lived together in a shared household after their marriage on 4.12.2006; if the parties have/had lived together whether the same gives rise to relationship in the nature of marriage within the meaning of Section 2(f) of the DV Act, 2005; whether the decision of this Court in Velusamy (supra) is an authoritative pronouncement on the expression "relationship in the nature of marriage" and if so whether the same would require reference to a larger Bench, may all be premature and the same need not be answered for the present. Instead, in the first instance, the matter may be viewed from the perspective indicated below.

13. The Respondent before us had claimed (before the trial court as well as the High Court) that the marriage between him and the appellant solemnized on 4.12.2006, by performance of rituals in

accordance with Hindu Law, was void on account of the previous marriage between the appellant with one Rohit Kumar Mishra. In support thereof, the respondent relied on a marriage certificate dated 18.4.2003 issued under Section 13 of the Special Marriage Act, 1954. Acting solely on the basis of the aforesaid marriage certificate the learned trial court as well as the High Court had proceeded to determine the validity of the marriage between the parties though both the courts were exercising jurisdiction in a proceeding for maintenance. However, till date, the marriage between the parties is yet to be annulled by a competent court. What would be the effect of the above has to be determined first inasmuch as if, under the law, the marriage between the parties still subsists the appellant would continue to be the legally married wife of the respondent so as to be entitled to claim maintenance and other benefits under the DV Act, 2005. Infact, in such a situation there will be no occasion for the Court to consider whether the relationship between the parties is in the nature of a marriage.

14. Admittedly, both the appellant and the respondent are governed by the provisions of the Hindu Marriage Act, 1955. Section 11 of the Hindu Marriage Act makes it clear that a marriage solemnized after the commencement of the Act "shall be null and void and may, on a petition presented by either party thereto against the other party, be so declared by a decree of nullity if it contravenes any one of the conditions so specified in clauses (i), (iv) and (v) of Section 5."

15. While considering the provisions of Section 11 of the Hindu Marriage Act, 1955 this Court in *Yamunabai v. Anantrao*³ has taken the view that a marriage covered by Section 11 is void-*ipso-jure*, that is, void from the very inception. Such a marriage has to be ignored as not existing in law at all. It was further held by this Court that a formal declaration of the nullity of such a marriage is not a mandatory requirement though such an option is available to either of the parties to a marriage.

It must, however, be noticed that in *Yamunabai* (*supra*) there was no dispute between the parties either as regards the existence or the validity of the first marriage on the basis of which the second marriage was held to be *ipso jure* void.

16. A similar view has been expressed by this Court in a later decision in *M.M. Malhotra v. Union of India* wherein the view expressed in *Yamunabai* (*supra*) was also noticed and reiterated.

17. However, the facts in which the decision in *M.M. Malhotra* (*supra*) was rendered would require to be noticed in some detail:

The appellant M.M. Malhotra was, *inter alia*, charged in a departmental proceeding for contracting a plural marriage. In reply to the charge sheet issued it was pointed out that the allegation of plural marriage was not at all tenable inasmuch as in a suit filed by the appellant (M.M. Malhotra) for a declaration that the respondent (wife) was not his wife on account of her previous marriage to one D.J. Basu the said fact *i.e.* previous marriage was admitted by the wife leading to a declaration of the invalidity of the marriage between the parties. The opinion of this court in *M.M. Malhotra* (*supra*) was, therefore, once again rendered in the situation where there was no dispute with regard to the *factum* of the earlier marriage of one of the

spouses.

18. In the present case, however, the appellant in her pleadings had clearly, categorically and consistently denied that she was married to any person known as Rohit Kumar Mishra. The legitimacy, authenticity and genuineness of the marriage certificate dated 18.4.2003 has also been questioned by the appellant. Though Section 11 of the aforesaid Act gives an option to either of the parties to a void marriage to seek a declaration of invalidity/nullity of such marriage, the exercise of such option cannot be understood to be in all situations voluntarily. Situations may arise when recourse to a court for a declaration regarding the nullity of a marriage claimed by one of the spouses to be a void marriage, will have to be insisted upon in departure to the normal rule. This, in our view, is the correct ratio of the decision of this Court in *Yamunabai (supra)* and *M.M. Malhotra (supra)*. In this regard, we may take note of a recent decision rendered by this Court in *A. Subash Babu v. State of Andhra Pradesh & Anr.*⁵ while dealing with the question whether the wife of a second marriage contracted during the validity of the first marriage of the husband would be a "person aggrieved" under Section 198 (1)(c) of the Code of Criminal Procedure to maintain a complaint alleging commission of offences under section 494 and 495 IPC by the husband. The passage extracted below effectively illuminates the issue:

"Though the law specifically does not cast obligation on either party to seek declaration of nullity of marriage and it may be open to the parties even without recourse to the Court to treat the marriage as a nullity, such a course is neither prudent nor intended and a declaration in terms of Section 11 of the Hindu Marriage Act will have to be asked for, for the purpose of precaution and/or record. Therefore, until the declaration contemplated by Section 11 of the Hindu Marriage Act is made by a competent Court, the woman with whom second marriage is solemnized continues to be the wife within the meaning of Section 494 IPC and would be entitled to maintain a complaint against her husband."

19. In the present case, if according to the respondent, the marriage between him and the appellant was void on account of the previous marriage between the appellant and Rohit Kumar Mishra the respondent ought to have obtained the necessary declaration from the competent court in view of the highly contentious questions raised by the appellant on the aforesaid score. It is only upon a declaration of nullity or annulment of the marriage between the parties by a competent court that any consideration of the question whether the parties had lived in a "relationship in the nature of marriage" would be justified. In the absence of any valid decree of nullity or the necessary declaration the court will have to proceed on the footing that the relationship between the parties is one of marriage and not in the nature of marriage. We would also like to emphasize that any determination of the validity of the marriage between the parties could have been made only by a competent court in an appropriate proceeding by and between the parties and in compliance with all other requirements of law. Mere production of a marriage certificate issued under Section 13 of the Special Marriage Act, 1954 in support of the claimed first marriage of the appellant with Rohit Kumar Mishra was not sufficient for any of the courts, including the High Court, to render a complete and effective decision with regard to the marital status of the parties and that too in a collateral proceeding for maintenance. Consequently, we hold that in the present case until the

invalidation of the marriage between the appellant and the respondent is made by a competent court it would only be correct to proceed on the basis that the appellant continues to be the wife of the respondent so as to entitle her to claim all benefits and protection available under the DV Act, 2005.

12. Considering the legal preposition, here in the present case, it is admitted fact that marriage was solemnized between appellant and respondent no. 1 on 07.03.2013. The same was consummated. The appellant is asserting that the respondent no. 1 was already married at the time of her marriage with him hence his marriage with respondent no. 1 is nullity U/s 11 of the Hindu Marriage Act being in contravention of Section 5 (1) of Hindu Marriage Act. The appellant is asserting these facts on the basis of marriage certificate being issued from the Registrar, Hindu Marriages, Sub District Ghaziabad, Ghaziabad, Uttar Pradesh. Merely, production of a marriage certificate issued u/s 13 of the Special Marriage Act, 1954 in support of the claimed first marriage of the respondent no. 1 with one Prasanjeet is not sufficient. Emphasis Deoki Panjhiyara Vs. Shashi Bhushan Narayan Azad & Anr. (Supra).

13. Here in the present case, the respondent no. 1 is disputing her marriage with Prasanjeet Sarkar and she has asserted only a fact in the petition that a bad incident had happened with her. And admitting the fact of marriage of respondent no. 1 with said Prasanjeet Sarkar by the mother and brother of the respondent no. 1 has to be seen whether same can be considered as an admission against the respondent no. 1 or not. It will be adjudicated in appropriate proceedings.

14. Even otherwise if a fact is admitted to be correct, for the sake of argument, that the marriage between the respondent no. 1 and the said Prasanjeet Sarkar was performed. Then, the marriage of the respondent no. 1 with the Prasanjeet may be nullity ab-initio U/s 11 r/w Sec 5 of the Hindu Marriage Act because the respondent no. 1 is asserting that Prasanjeet Sarkar is her real cousin brother. Then the marriage between the appellant and respondent no. 1 may subsist. Though, it is not within the jurisdiction of this Court to give any opinion regarding the nullity or subsisting of marriage between the appellant and respondent no. 1 but I am giving the observation only on the basis of averment in pleading, if same is admitted to be correct and same are only for the sake of argument.

15. In view of the discussion above, I am of the view that until and unless the appellant did not get decree of nullity of marriage with respondent no. 1, as divorce petition U/s 11 HMA has already been filed, the respondent no. 1 is entitled for benefits and protection under DV Act as the Act is benevolent in favour of a woman.

16. On perusal of order of the Ld. Trial Court, I found no illegality, infirmity or impropriety. In the impugned order. Even otherwise, the order of maintenance is not final it is only an interim order which may be altered or increased or modified at the time of final disposal of the main petition. The appeal is dismissed accordingly.

17. Copy of this order be sent to Ld. Trial Court along with TC record. Copy of this order be also sent to concerned officer in accordance with directions of Hon'ble High Court.

18. Appeal files be consigned to record room after due compliance.

Announced in the open court
today i.e on 18.04.2017

(
A
T